

Chief Justice's Court

Case :- WRIT - C No. - 28103 of 2023

Petitioner :- Shankar Lal

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ravi Shankar Kanojiya

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

Sri Ravi Shankar Kanojiya, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Ms. Rishu Mishra, learned counsel for respondent nos. 4 to 7.

Challenge in this petition is to the recovery certificate dated 28.03.2023, Annexure-1 to the writ petition for a sum of Rs. 5,51,000/-, which is sought to be recovered as electricity dues.

Learned counsel appearing for respondent nos. 4 to 7 submits that earlier on account of some typographical mistake, recovery of Rs. 9,37,758/- was made, which was later on rectified by the department and now the petitioner has been asked to pay an amount of Rs. 5,51,000/-.

Learned counsel for the petitioner submits that even the bill of Rs. 5,51,000/- is not correct as the petitioner is living in a two rooms house belonging to EWS category and under no stretch of imagination, his electric bill can be so high where he is required to pay Rs. 5,51,000/-. It has been argued that the respondent Corporation is in a habit of raising such bills irrespective of the fact that the petitioner has consumed electricity or not.

Learned counsel for respondent nos. 4 to 7 submits that petitioner has an alternative remedy of raising dispute under Section 6.5 of U.P. Electricity Supply Code 2005 for correction of bill and he can also approach Consumer Grievance Redressal Forum.

We are of the view that the petitioner can raise his grievance under Section 6.5 of U.P. Electricity Supply Code 2005 before the appropriate Authority within a period of three weeks from today along with an application for grant of interim relief and deposit slip of Rs. 50,000/-, which shall be deposited by the petitioner towards his electricity dues. In such case, respondent-Corporation is obliged to decide the application of the petitioner

within a period of one month from the date of filing such application.

Till two months from today, recovery, as against the petitioner, shall remain stayed and the electric supply, already granted to the petitioner, shall not be disconnected.

List this case on 26.10.2023.

Order Date :- 22.8.2023

SK

(Ashutosh Srivastava,J.) (Pritinker Diwaker,CJ.)

Court No. - 3

Case :- WRIT - C No. - 28103 of 2023

Petitioner :- Shankar Lal

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ravi
Shankar Kanojiya

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

List this case on 18.12.2023.

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 20.11.2023

M.S. Ansari

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 28103 of 2023

Petitioner :- Shankar Lal

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ravi
Shankar Kanojiya

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. List after three weeks.
2. Interim order, if any, is extended till the next date of listing.

Order Date :- 2.1.2024

Sazia

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Court No. - 21

Case :- WRIT - C No. - 28103 of 2023

Petitioner :- Shankar Lal

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ravi Shankar Kanojiya

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

List after three weeks.

Interim order, if any, is extended till the next date of listing.

(Kshitij Shailendra, J) (Manoj Kumar Gupta, ACJ).

Order Date :- 24.1.2024

RK

Court No. - 21

Case :- WRIT - C No. - 28103 of 2023

Petitioner :- Shankar Lal

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ravi Shankar Kanojiya

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. List after four weeks.
2. Interim order, if any, is extended till the next date of listing.

Order Date :- 20.2.2024

Sazia

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 3

Case :- WRIT - C No. - 28103 of 2023

Petitioner :- Shankar Lal

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ravi Shankar Kanojiya

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

List after four weeks.

Interim order previously granted to the petitioner shall continue till the next date of listing.

Order Date :- 20.5.2025

Satyam

Court No. - 3

Case :- WRIT - C No. - 28103 of 2023

Petitioner :- Shankar Lal

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Ravi Shankar Kanojiya

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Praveen Kumar Giri, J.

1. List after four weeks.
2. Subsisting interim order to continue till the next date of listing.

Order Date :- 14.8.2025

K.Tiwari

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 28103 of 2023

Shankar Lal
.....Petitioner(s)
Versus
State Of U.P. And 6 Others
.....Respondent(s)

Counsel for Petitioner(s) : Ganesh Shanker Srivastava, Ravi
Shankar Kanojiya
Counsel for Respondent(s) : C.S.C., Rishu Mishra

Court No. - 2

**HON'BLE PRAKASH PADIA, J.
HON'BLE VIVEK SARAN, J.**

1. As prayed, list after six weeks.
2. Interim order, if any granted earlier, is extended till the next date of listing.

(Vivek Saran,J.) (Prakash Padia,J.)

October 6, 2025
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